IN THE UNITED STATES AIR FORCE COURT OF CRIMINAL APPEALS

UNITED STATES Appellee v. Air Force Cadet DEKOTA M. DOUGLAS United States Air Force Appellant	)))))))	**BRIEF ON BEHALF OF APPELLANT** Before Special Panel No. ACM 40324 (f rev) 26 April 2024

TO THE HONORABLE, THE JUDGES OF THE UNITED STATES AIR FORCE COURT OF CRIMINAL APPEALS:

Assignments of Error

I.
WHETHER THE CONVENING AUTHORITY ERRED BY CONSIDERING R.H.'S SUBMISSION OF MATTERS WHEN SHE IS NOT A VICTIM UNDER R.C.M. 1106A.

II.
WHETHER THE GOVERNMENT ERRED IN POST-TRIAL PROCESSESING BY NOTING THE FIREARM PROHIBITION WAS TRIGGERED UNDER 18 U.S.C. § 922 WHEN CADET DOUGLAS HAS NOT "BEEN DISCHARGED FROM THE ARMED FORCES UNDER DISHONORABLE CONDITIONS."

Additional Statement of the Case

Air Force Cadet (Cadet) Dekota M. Douglas filed his initial assignments of error (AOE) with this Court on 13 September 2023. *See* App. Br. The Government filed their answer on 19 October 2023. *See* Gov. Ans. On 26 October 2023, Cadet Douglas filed his reply brief. *See* Reply.

On 5 December 2023, this Court issued its unpublished opinion in the case. *United States v. Douglas*, No. ACM. 40324, 2023 CCA LEXIS 502 (A.F. Ct. Crim. App. 5 Dec. 2023) (unpub. op.). This Court agreed with the Government's concession that the case should be remanded given Cadet Douglas was not provided an opportunity to rebut R.H.'s submission of matters

prior to the convening authority's decision on action. *Id.* at *2. It remanded the case to the Chief Trial Judge, Air Force Trial Judiciary, to provide Cadet Douglas an opportunity to rebut R.H.'s submission of matters and for correction of Prosecution Exhibit 3. *Id.* This Court deferred addressing the other AOEs until the record was returned. *Id.* On 29 January 2024, this case was redocketed with this Court. After the case was redocketed, Cadet Douglas submitted a Motion for Enlargement of Time (First), for a period of 60 days to end on 28 May 2024. On 22 March 2024, this Court ordered that any additional AOE be filed no later than 2 May 2024.

Previous Assignments of Error

Cadet Douglas maintains the AOEs raised in his initial brief to this Court. App. Br. Cadet Douglas respectfully requests this Honorable Court consider the following additional argument on the issues raised in this brief.

1. The Government and the Defense Agreed that R.H. was Not a Victim Under R.C.M. 1106A or Article 6b, UCMJ, for the Convicted Offenses.

The military judge at trial asked both parties what their positions were regarding whether R.H. was a victim of the convicted Article 92, UCMJ, offenses. R. at 729. Trial counsel stated, "I'm not aware of any direct emotional, financial, or other harm that may have been suffered as a result of the unprofessional relationship or underage drinking." *Id.* The military judge asked trial counsel if that meant the Government's position was that R.H. was not a victim and if trial counsel wanted to confer with the victims' counsel. *Id.* After conferring with victims' counsel, trial counsel stated the Government did not have a position. *Id.* He followed up stating R.H. may have some information that could be related, but he was not sure if it would meet the definition and the Government did not have a position. *Id.* The Defense agreed that R.H. was not a victim under the rules of the convicted offenses. R. at 730. The victims' counsel claimed:

> I believe that my client could testify to psychological impact of the unprofessional relationship, and that she believed that this person was a friend, when he was in a position where he should not have been. That deceit by itself. Although

> potentially minimal, I think it does meet the low bar for being a victim, at least, of these – of these convicted offenses.

Id. The military judge indicated there was case law on the issue that he would need to look up. *Id.* He then asked the victims' counsel whether R.H. wanted to be heard if considered a victim for the convicted offenses. *Id.* The victims' counsel indicated R.H. did not wish to be heard. *Id.* Later, the military judge found R.H. was a victim under R.C.M. 1106A and Article 6b, UCMJ, after reviewing "the rules and case law." R. at 737. The military judge did not cite any specific case law. R.H. did not submit or read any victim impact statement.

2. Cadet Douglas Asked the Convening Authority Not to Consider R.H. a Victim Under R.C.M. 1106A or Article 6b, UCMJ, but the Convening Authority Did Consider the Matters.

On 21 December 2023, Cadet Douglas was notified of his opportunity to submit matters in rebuttal to R.H.'s submission of matters. Remand Documents. On 22 December 2023, Cadet Douglas responded to R.H.'s submission of matters. Rebuttal to R.H.'s Submission of Matters. He first asked the convening authority not to consider "the post-trial submission of matters provided by R.H. as she is not a crime victim under R.C.M. 1106A." *Id.* at 1.

3. In the Alternative, Cadet Douglas Rebutted R.H.'s Submission of Matters.

Cadet Douglas provided counter evidence to several comments made in the submission by R.H. *Id.* R.H. claimed:

> Based on his utter lack of integrity alone, by tricking me into a friendship that he knew was unprofessional and taking me to a remote area of the woods outside the cadet area where he coerced me into drinking an entire pint of hard liquor, he demonstrated to the members that he is not fit to serve.

R.H.'s Submission of Matters. At no point during trial did R.H. describe Cadet Douglas as "tricking" her into a friendship nor that Cadet Douglas "coerced" her into drinking. Cadet Douglas pointed to several instances of R.H. choosing to engage in a friendship with him:

hanging out in the squadron study room in order to get help studying for Japanese class; meeting up in the squadron media room to talk about issues back home, with her roommates, and with her classes; meeting up multiple times to watch movies with him; and eating Chick-fil-A in the classrooms. Rebuttal to R.H.'s Submission of Matters at 2.

R.H. described to Cadet Douglas multiple occasions of her drinking back home prior to the night he negligently provided her alcohol. *Id.* R.H. went to college parties and drank. *Id.* She also went to a party with friends and blacked out when she went home on emergency leave. *Id.* R.H. stated vodka was her favorite liquor. *Id.* R.H. testified "we agreed on going to the woods" and "we agreed to drink." *Id.*; R. at 372-73.

4. The Convening Authority Again Considered R.H.'s Submission of Matters Prior to Signing the Decision on Action.

On 13 May 2022, the convening authority originally signed the Decision on Action after reviewing Cadet Douglas's submission of matters and R.H.'s submission of matters. Then on 3 January 2024, the convening authority signed the second Decision on Action after reviewing the same submission of matters as well as Cadet Douglas's Rebuttal to R.H.'s Submission of Matters. Convening Authority Decision on Action [2nd CADA], 3 January 2024.

Additional Arguments

I.
THE CONVENING AUTHORITY ERRED BY CONSIDERING R.H.'S SUBMISSION OF MATTERS WHEN SHE IS NOT A VICTIM UNDER R.C.M. 1106A.

Standard of Review

Correct completion of post-trial processing is a question of law reviewed de novo. *United States v. Zegarrundo*, 77 M.J. 612, 614 (A.F. Ct. Crim. App. 2018) (citations omitted).

Law and Analysis

R.H. did not qualify as a crime victim under R.C.M. 1106A for the offenses Cadet Douglas was convicted of. As such, the convening authority should not have considered R.H.'s submission of matters. Rule for Courts-Martial 1106A defines a crime victim as "an individual who has suffered direct physical, emotional, or pecuniary harm as a result of the commission of an offense of which the accused was found guilty." R.C.M. 1106A(b)(2). But there was no evidence at trial that R.H. suffered any direct physical, emotional, or pecuniary harm as a result of Cadet Douglas negligently having an unprofessional relationship with her or providing her alcohol while she was underage.

1. *R.H. Did Not Suffer any Direct Physical, Emotional, or Pecuniary Harm from Cadet Douglas Negligently having an Unprofessional Relationship with her.*

The only discussion regarding potential psychological harm was from the victims' counsel in an Article 39(a), UCMJ, session. R. at 730. The victims' counsel stated he believed R.H. "could testify to psychological impact of the unprofessional relationship" because R.H. believed Cadet Douglas was a friend and he deceived her by being "in a position where he should not have been." *Id.* However, R.H. never testified as to psychological harm based on the friendship, so there was no evidence of such. Of note, discussion by victims' counsel is not evidence. *See* Dep't of Army, Pam. 27-9, Legal Services: Military Judges' Benchbook, para. 2-5-13 (29 Feb. 2020) (Benchbook) (stating arguments by counsel are not evidence); R. at 659. Further, Cadet Douglas was convicted of negligent—not willful—dereliction of duty by having an unprofessional relationship with R.H. Corrected Entry of Judgment (EOJ), 14 January 2024. Negligent is defined as "an act or omission of a person who is under a duty to use due care which exhibits a lack of that degree of care which [] a reasonably prudent person would have exercised under the same or similar circumstances." R. at 647. There was no deceit. RH is describing the impact of an offense the Government did not charge.

R.H. chose to hang out with Cadet Douglas. Rebuttal to R.H.'s Submission of Matters at 2. R.H. decided to accept help with her Japanese from Cadet Douglas since they were both enrolled in a Japanese language class. R. at 369. R.H. was struggling in several classes and by mid-semester, she was facing academic probation. R. at 403, 509. She also talked to Cadet Douglas about being behind academically due to her emergency leave. R. at 369. R.H. chose to talk to Cadet Douglas about her issues back home. Rebuttal to R.H.'s Submission of Matters at 2. She also talked to Cadet Douglas about her issues with her roommates. R. at 369-70. R.H. was grateful for Cadet Douglas because he listened to her and gave her advice. R. at 370. While Cadet Douglas was negligent in engaging with R.H. in these ways due to him being an upperclassman, he was not willfully deceiving her or trying to "trick" her into an unprofessional relationship. He was being supportive and listened to her talk about her problems when she felt like she had no one in her squadron to confide in. *Id.*

2. *R.H. Did Not Suffer any Direct Physical, Emotional, or Pecuniary Harm from Cadet Douglas Negligently Providing her Alcohol while she was Underage.*

R.H. did not qualify as a crime victim under R.C.M. 1106A for negligently being provided alcohol by Cadet Douglas. There was no evidence she suffered direct harm from being given alcohol. At trial, R.H. did not discuss any harm she suffered from negligently being provided alcohol while she was underage. And while not evidence, her victims' counsel also did not mention any harm regarding the alcohol.

In R.H.'s submission of matters, for the first time, she claimed Cadet Douglas "coerced" her into drinking.[1] That was simply not the case. She wanted to drink with Cadet Douglas, she agreed to meet up, and they made plans to drink together. R. at 372. R.H. did not need to be "coerced" into drinking. She drank alcohol before on multiple occasions, including to the point

[1] Since this was the first time R.H. ever described being "coerced" into drinking, she was not cross examined on it in trial.

of being blacked out. Rebuttal to R.H.'s Submission of Matters at 2. R.H. wanted to drink alcohol that night with Cadet Douglas. She thought it would help her forget her problems and worries. R. at 372. Before meeting up, R.H. told Cadet Douglas her favorite liquor was vodka. Rebuttal to R.H.'s Submission of Matters at 2. That's exactly what Cadet Douglas brought and gave R.H. to drink. R. at 375. While Cadet Douglas was negligent in providing her alcohol while he was underage, he did not force, trick, or coerce R.H. into drinking with him. They agreed weeks before to meet up and drink together. R. at 372 -73. The night of, they agreed to go into the woods together to drink, and that's what they did. *Id.*

3. *Cadet Douglas's Substantial Rights were Materially Prejudiced.*

Cadet Douglas asked for a reduction in confinement, but the convening authority denied the request after he considered R.H.'s submission of matters. Req. for Clemency, 3 May 2022; Convening Authority Decision on Action, 13 May 2022; Convening Authority Decision on Action, 3 January 2024. The convening authority was empowered to grant the requested relief and did not take action on the sentence after improperly considering matters submitted by R.H., who was not a crime victim under R.C.M. 1106A. *Cf. United States v. King*, No. ACM. 39927 (f rev), 2023 CCA LEXIS 383, *28-29 (A.F. Ct. Crim. App. 11 Sep. 2023) (unpub. op.) (finding there was material prejudice to appellants substantial rights when the convening authority had the power to grant the requested relief and took action without considering the matters appellant submitted). Since Cadet Douglas has made a colorable showing of possible prejudice, there was a material prejudice to his substantial rights. *Id.* at *25 (citing *United States v. Rosenthal*, 62 M.J. 261, 263 (C.A.A.F. 2005)) (additional citations omitted).

4. *Conclusion.*

R.H. was not a crime victim under R.C.M. 1106A of the negligent dereliction of duty convictions. There was no evidence in trial that she suffered physical, mental, or pecuniary harm from the Article 92, UCMJ, offenses. Further, the substance of R.H.'s submission of matters was

contradicted by the facts at trial. R.H. never testified that Cadet Douglas "tricked" her into a friendship or "coerced" her into drinking. In fact, the words "trick" and "coerce" do not occur anywhere in the transcript. Cadet Douglas made a colorable showing of possible prejudice since he did not receive any request relief and the convening authority did consider R.H.'s submission of matters. Rather than remanding this case yet again, Cadet Douglas asks this Court to exercise its Article 66(d), UCMJ, authority and grant the relief requested under AOE I in his initial brief —set aside the sentence to a dismissal. App. Br. at 11-12; *see King*, 2023 CCA LEXIS at *29 (where this Court declined to remand the case a second time for proper post-trial processing and instead exercised its Article 66(d), UCMJ, authority to not affirm the reduction in rank to the grade of E-1).

WHEREFORE, Cadet Douglas respectfully requests that this Honorable Court set aside the sentence to a dismissal.

II.
THE GOVERNMENT ERRED IN POST-TRIAL PROCESSESING BY NOTING THE FIREARM PROHIBITION WAS TRIGGERED UNDER 18 U.S.C. § 922 WHEN CADET DOUGLAS HAS NOT "BEEN DISCHARGED FROM THE ARMED FORCES UNDER DISHONORABLE CONDITIONS."

Additional Facts

After the case was remanded, the Government determined that Cadet Douglas's case still qualified for a firearms prohibition under 18 U.S.C. § 922. Corrected EOJ, 14 January 2024. The EOJ does not indicate which subsection of § 922 applies to Cadet Douglas's conduct. *Id.*

Standard of Review

This Court reviews questions of jurisdiction, law, and statutory interpretation de novo. *United States v. Lepore*, 81 M.J. 759, 760 (A.F. Ct. Crim. App. 2021).

Law and Analysis

Cadet Douglas's convictions do not qualify under any of the nine enumerated categories of 18 U.S.C. § 922(g) that would bar her from possessing firearms. There is no evidence in the record—nor does any evidence exist—that Cadet Douglas is convicted of a crime punishable by confinement for more than one year (18 U.S.C. § 922(g)(1)), a fugitive from justice (18 U.S.C. § 922(g)(2)), an unlawful user of or addicted to any controlled substance (18 U.S.C. § 922(g)(3)), adjudicated as a mental defective or committed to a mental institution (18 U.S.C. § 922(g)(4)), an alien (18 U.S.C. § 922(g)(5)), a citizen who renounced his citizenship (18 U.S.C. § 922(g)(7)), subject to a court order to refrain from harassing, stalking, or threatening an intimate partner (18 U.S.C. § 922(g)(8)), or convicted of a misdemeanor crime of domestic violence (18 U.S.C. § 922(g)(9)). The argument below will address the Government's potential misapplication of section 922(g)(6) to Cadet Douglas's convictions.

1. *18 U.S.C. § 922 was Not Triggered as Cadet Douglas has Not Been Discharged.*

Section 922(g)(6) bars the possession of firearms for those convicted who have "been discharged from the Armed Forces under dishonorable conditions." While Cadet Douglas was sentenced to be dismissed from the Air Force, he has not yet been discharged from the Armed Forces. *See* Article 57, UCMJ (stating a sentence to a dismissal may be executed after completion of appellate review). His case is still being reviewed on appeal. As such, section 922(g)(6) has not been triggered, and the Government erred in post-trial processing when noting the firearm prohibition was triggered.

2. *This Court May Order Correction of the EOJ.*

In *United States v. Lepore*, citing to the 2016 R.C.M., this Court held, "the mere fact that a firearms prohibition annotation, not required by the Rules for Courts-Martial, was recorded on a document that is itself required by the Rules for Courts-Martial is not sufficient to bring the

matter within our limited authority under Article 66, UCMJ." 81 M.J. 759, 763 (A.F. Ct. Crim. App. 2021). Despite the court-martial order erroneously identifying that A1C Lepore fell under the firearms prohibition, this Court did not act because the "correction relates to a collateral matter and is beyond the scope of our authority under Article 66." *Id.* at 760.

Six months after this Court's decision in *Lepore*, the CAAF decided *United States v. Lemire*, 82 M.J. 263 (C.A.A.F. 2022) (unpub. op.). The CAAF granted Sergeant Lemire's petition, affirmed the Army Court of Criminal Appeals' (ACCA) decision, and "directed that the promulgating order be corrected to delete the requirement that Appellant register as a sex offender." 82 M.J. at n.*. This disposition stands in tension with *Lepore*.[2]

The CAAF's decision in *Lemire* reveals three things. First, the CAAF has the power to correct administrative errors in promulgating orders.[3] Second, the CAAF believes that Courts of Criminal Appeals (CCAs) have the power to address collateral consequences under Article 66 as well since it "directed" the ACCA to fix—or have fixed—the erroneous requirement that Sergeant Lemire register as a sex offender. Third, if the CAAF and the CCAs have the power to fix administrative errors under Article 66 as they relate to collateral consequences, then perforce, they also have the power to address constitutional errors in promulgating orders, even if the Court deems them to be a collateral consequence.

Moreover, *Lepore* relates to a prior version of the Rules for Courts-Martial—"[a]ll references in this opinion to the UCMJ and [R.C.M.] are to the Manual for Courts-Martial, United States (2016 ed.)." 81 M.J. at n.1. In the 2019 MCM, both the Statement of Trial Results (STR) and the EOJ contain "[a]ny additional information . . . required under regulations

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[2] The CAAF is currently reviewing this issue in *United States v. Williams*, No. 24-0015/AR, 2024 CAAF LEXIS 43 (C.A.A.F. 24 Jan. 2024) (granting review on application of another § 922 subsection and whether CAAF has jurisdiction to review the Army Court of Criminal Appeals' action to correct the statement of trial results.).

[3] While a promulgating order was at issue in *Lemire*, the same should apply to the EOJ, which replaced the promulgating order as the "document that reflects the outcome of the court-martial." MCM, App. 15 at A15-22.

prescribed by the Secretary concerned." R.C.M. 1101(a)(6), 1111(b)(3)(F). Under DAFI 51-201, *Administration of Military Justice*, dated 14 April 2022, ¶ 29.32, the STR and EOJ must include whether the offenses trigger a prohibition under § 922. As such, this Court's analysis in *Lepore* is no longer controlling since the R.C.M. now requires—by incorporation—a determination on whether the firearm prohibition is triggered.[4] Thus, this Court can rule in Cadet Douglas's favor without taking the case en banc. If this Court disagrees, Cadet Douglas offers the above argument to overrule *Lepore* under Joint Rule of Appellate Procedure 27(d).

WHEREFORE, Cadet Douglas respectfully requests this Honorable Court order correction of the STR and EOJ to indicate that no firearm prohibition applies in his case.

Respectfully submitted,

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[4] *See also United States v. Robertson*, No. 202000281, 2021 CCA LEXIS 531 (N.M. Ct. Crim. App. 18 Oct. 2021) (unpub. op.) (ordering correction of an STR because it incorrectly stated § 922 did not apply); *United States v. Moreldelossantos*, ARMY 20210167, 2022 CCA LEXIS 164 (17 Mar. 2022) (unpub. op.) (ordering correction of the STR to change the Section 922(g)(1) designator to "No").

Certificate of Filing and Service

I certify that the original and copies of the foregoing were sent via email to the Court and served on the Government Trial and Appellate Operations Division on 26 April 2024.

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